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**STATE OF VERMONT
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In Re:
Janice Solek-Tefft
License No. 68-0147

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Docket No. MH03-0202

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COMES the State of Vermont, by and through its through Attorney General, William H. Sorrell, and Respondent Janice Solek-Tefft, who stipulate and agree as follows:

1. The Vermont Board of Allied Mental Health Practitioners has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by licensed mental health counselors pursuant to 3 V.S.A. §§129, 129a and 814; 26 V.S.A. §§3262a, 3263, 3266, 3269, 3271, and the Rules of the Board and of the Office of Professional Regulation.
2. Respondent Janice Solek-Tefft, of Underhill, Vermont, is a Mental Health Counselor, holding license number 68-0147, issued by the State of Vermont. This license was originally issued on about February 18, 1993 and it is currently active.
3. At times relevant, Respondent was employed by or associated with the Underhill Elementary I.D. School, of Underhill, Vermont, as a certified Guidance Counselor through the Vermont State Department of Education.
4. Respondent admits that on about December 10, 2001, student "M.C." -- who had a history of self-harm behaviors -- shared with her an event or events that were suicidal in nature, including but not necessarily limited to a recent incident where

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M.C. had climbed into a freezer.

5. Respondent admits that on about December 10, 2001, in her presence, M.C. put a plastic bag on top of his head and pulled it down. Further, M.C. refused instructions to remove the bag and Respondent had to physically remove it. Respondent represents that: on December 10, 2001, she notified the principal of the Underhill Elementary I.D. School, "K.R.", of M.C.'s actions and also gave him the plastic bag; K.R. indicated that a meeting was scheduled for the next day (December 11, 2001) regarding M.C. and that K.R. would disclose M.C.'s actions, and; Respondent informed K.R. that she would attend the meeting but that she had a court appearance scheduled and would not be able to stay at the meeting for long.
6. Respondent admits that on about December 11, 2001, she attended a meeting with the M.C.'s: guardian ("V.A."); teacher ("L.V."); principal ("K.R."); and therapist ("G.H."). Respondent represents, upon information and belief, that: after Respondent left the meeting, principal K.R. arrived; Respondent left the meeting to attend a court hearing on another client; Later in the afternoon of December 11, 2001, Respondent telephoned K.R. to inquire about the meeting and the disclosure of M.C.'s actions; K.R. indicated that he did not make the disclosure; K.R. then told Respondent he would immediately telephone M.C.'s guardian to disclose the incidents; Respondent thereupon called M.C.'s therapist, G.V., and; G.V. was not in and Respondent therefore left an emergency message on the therapist's answering machine regarding M.C.'s actions.

7. Respondent admits that on about December 12, 2001, she informed M.C.'s guardian(s) for the first time of the above incidents.
8. Respondent admits that on about December 12, 2001, Respondent informed therapist G.H. for the first time of the above incidents.
9. Respondent admits the conclusions of unprofessional conduct as set forth herein and the entry of the Order set forth below.
10. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
11. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
12. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
13. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
14. Respondent voluntarily waives her right to charges and a contested hearing before the Board.
15. Respondent waives any notification period and agrees to have this document reviewed by the Board during the next available meeting. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her right to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.

16. Respondent agrees that the Board may set forth the order below.

17. Respondent complied with her duties as a Certified Guidance Counselor by immediately notifying her principal of M.C.'s actions, but her actions constitute unprofessional conduct within the meaning of, and violates: N.B.C.C. Code of Ethics Section B(4) ^{her} (When a client's condition indicates that there ^{was} is a clear and imminent danger to the client ^{Failed to} or others, the certified counselor must take reasonable action to ¹ inform potential victims and/or responsible authorities... Consultation with other professionals must be used when possible); Board Rule 3.11 (The Board endorses the National Board of Certified Counselors ((N.B.C.C.)) "Code of Ethics" amended October 31, 1997), and 3 V.S.A §129a(a)(3) (failing to comply with provisions of Federal or State statutes or rules governing the practice of the profession).

ORDER

Based on the stipulation above it is **ORDERED AND ADJUDGED** as follows:

A. Respondent acted unprofessionally and in violation of: N.B.C.C. Code of Ethics Section B(4) (When a client's condition indicates that there is a clear and imminent danger to the client or others, the certified counselor must take reasonable action to inform potential victims and/or responsible authorities... Consultation with other professionals must be used when possible); Board Rule 3.11 (The Board endorses the National Board of Certified Counselors ((NBCC)) "Code of Ethics" amended October 31, 1997), and; 3 V.S.A. §129a(a)(3) (failing to comply with provisions of federal or state statutes or rules governing the practice of the profession).

B. The Board of Allied Mental Health Practitioners **REPRIMANDS** the Respondent.

C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT

WILLIAM H. SORRELL
ATTORNEY GENERAL

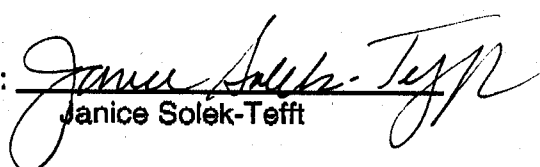
Dated: 4/23/03

by: 

William H. Sorrell
Assistant Attorney General

JANICE SOLEK-TEFFT
RESPONDENT

Dated: 4/16/03

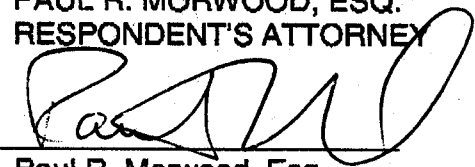
by: 

Janice Solek-Tefft

Approved as to Form:

PAUL R. MORWOOD, ESQ.
RESPONDENT'S ATTORNEY

Dated: 4/21/03

by: 

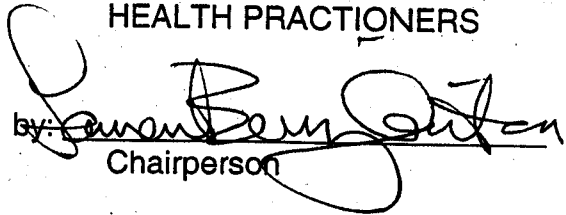
Paul R. Morwood, Esq.

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APPROVED AND SO ORDERED:

BOARD OF ALLIED MENTAL
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Dated: 6/19/03

by: 
Chairperson

Date of entry: 6/20/03

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